



CHAPTER lxiii.

An Act for incorporating and conferring powers on the Fleetwood Gas Company. A.D. 1912.
[7th August 1912.]

WHEREAS the Fleetwood Gas Company Limited (in this Act called "the limited company") were in the year one thousand eight hundred and seventy-two incorporated under the Companies Act 1862:

And whereas by the Fleetwood Gas Order 1873 (in this Act referred to as "the Order of 1873") the limited company were authorised to supply and sell gas within the town of Fleetwood and parts of the parish of Poulton-le-Fylde in the county of Lancaster and to raise share capital not exceeding fourteen thousand pounds:

And whereas by the Fleetwood Gas Order 1884 (in this Act referred to as "the Order of 1884") the then existing share capital of the limited company was sanctioned and the limited company were authorised to raise additional share capital not exceeding twenty thousand five hundred pounds:

And whereas the share capital of the limited company at present consists of—

Ten thousand pounds divided into one thousand fully paid-up ordinary shares of ten pounds each entitled to a standard dividend at the rate of eight pounds per centum per annum; and

Eighteen thousand pounds divided into eighteen hundred fully paid-up ordinary shares of ten pounds each entitled to a standard dividend at the rate of seven pounds per centum per annum:

[Price 2s. 3d.]

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And whereas the limited company have in respect of the issue of shares received premiums to the amount of eight thousand three hundred and eighty-nine pounds fourteen shillings and three pence:

And whereas the limited company were authorised by the Order of 1884 to borrow on mortgage any sums not exceeding in the whole five thousand four hundred pounds and have borrowed sums amounting to three thousand seven hundred pounds entitled to interest at the rate of four per centum per annum:

And whereas the demand for gas in the limits supplied by the limited company has increased and is increasing:

And whereas it is expedient that the limited company be dissolved and re-incorporated with further powers and that the Company so re-incorporated should be authorised to improve and extend their works and mains and to supply gas within the limits defined by this Act:

And whereas it is expedient that additional capital should be provided for such purposes and that such further powers should be conferred upon the Company and such further provisions enacted as are contained in this Act:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):--

PRELIMINARY.

Short title.

1. This Act may be cited as the Fleetwood Gas Act 1912.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):--

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement); and A.D. 1912.

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act— Interpretation.

The expression "the Company" means the Fleetwood Gas Company incorporated by this Act;

The expressions "the gasworks" and "the gas undertaking" respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be continued and maintained by the Company and any improvement and extension thereof which they may make or construct under the powers of this Act and the lands buildings estate right title property and privileges and effects and the undertaking of the Company and every part thereof respectively.

RE-INCORPORATION.

4. As from the first day of January one thousand nine hundred and thirteen (in this Act referred to as "the date of transfer") the limited company shall be dissolved and the several persons who immediately before the date of transfer were members of that company and all other persons who have already subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes herein-after mentioned and shall be and are hereby re-incorporated by the name of the "Fleetwood Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and of the undertaking. Re-incorporation of Company.

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General
purposes of
Company.

5. The Company shall be established for the purpose of manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of supply as defined by this Act and may convert manufacture and sell all residual products resulting from the manufacture of gas by them and generally may carry on any business usually carried on by gas companies but the Company shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or for the maintenance and repair of gas fittings.

Present pro-
perty of
limited com-
pany vested
in Company.

6. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the date of transfer were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the date of transfer were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the date of transfer belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the date of transfer in force shall be and the same are hereby transferred to and vested in the Company as from the date of transfer to the same extent and for the same estate and interest as the same were previously to the date of transfer vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit Provided that the sum of two thousand pounds standing to the credit of the reserve fund of the limited company on the thirty-first day of December 1911 shall be and the same is hereby transferred to the credit of the capital account of the limited company and shall be deemed to have arisen by way of premium from the issue of shares under the Order of 1884.

Memo-
randum and
articles of

7. Subject to the provisions of this Act as from the date of transfer the memorandum and articles of association of the

limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the date of transfer but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

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association
of limited
company to
be void.

8. Except as is by this Act otherwise expressly provided everything before the date of transfer done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Saving of
existing
rights and
liabilities.

9. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the date of transfer by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and in force at the date of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and

Contracts
prior to date
of transfer to
be binding.

A.D. 1912. — effectually as if instead of the limited company or any trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

10. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the date of transfer but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Indemnity.

11. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the date of transfer and who (being authorised so to do) before the date of transfer entered into any bond covenant contract or engagement on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy lia-
bilities of
limited com-
pany.

12. From and after the date of transfer and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the date of transfer were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

13. All gas rents and sums of money which immediately before the date of transfer were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

14. All persons who immediately before the date of transfer owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the date of transfer were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

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As to payment of debts owing before date of transfer.

15. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) and all sales transfers and dispositions heretofore made or executed under them before the date of transfer for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if the said memorandum and articles of association had not been avoided.

Certificates &c. to remain in force.

16. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Books &c. continued evidence.

17. All officers and servants of the limited company who were in office immediately before the date of transfer shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto attaching until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers of limited company to continue.

18. The books kept by the limited company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and shall be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

Present registers of members to be continued.

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CAPITAL.

Capital.

19. The capital of the Company shall be sixty-two thousand eight hundred and seventy-five pounds being the aggregate of the following sums:—

(1) Capital stock to the amount of forty-one thousand two hundred pounds being stock created in respect of the existing ordinary capital of the limited company which shall be called "ordinary stock":

(2) Twenty-one thousand six hundred and seventy-five pounds in this Act called "additional capital" which shall be raised in manner herein-after mentioned.

Allocation
of capital.

20.—(1) At the date of transfer there shall be created by virtue of this Act forty-one thousand two hundred pounds of ordinary stock and the Company shall issue such stock and the same shall be divided among and vested in the several persons who immediately before the date of transfer were registered as holders of shares of the limited company in the proportion of sixteen pounds of such stock for each ordinary share entitled to a dividend of eight pounds per centum per annum held by them respectively and fourteen pounds of such stock for each ordinary share entitled to a dividend of seven pounds per centum per annum held by them respectively.

(2) All stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights on the same trusts and subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities (except so far as the same may be altered or varied by this Act) as immediately before the date of transfer affected the share or shares as the case may be in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting the same and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the stock created under or by virtue of this Act substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any share or shares are

hereby expressly authorised and required to accept any stock allocated to and vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the share or shares in the capital of the limited company for which such stock created under or by virtue of this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act. A.D. 1912.

21.—(1) The Company shall call in the existing certificates of shares in the limited company and issue in exchange for those certificates to the respective proprietors thereof free of charge certificates for the stock to which those proprietors are by this Act respectively entitled. Certificates of shares to be called in and others issued.

(2) No shareholder of the limited company shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require.

(3) Until the issue of such new certificates the existing certificates shall (according to the amounts of ordinary stock to be substituted by virtue of this Act for the shares in the capital of the limited company which they respectively represent) have and confer the same rights and advantages as if they were certificates for the respective amounts of ordinary stock created by virtue of this Act.

(4) If any holder of shares in the capital of the limited company neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book of the limited company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

(5) On the issue of any certificate of ordinary stock the certificate or certificates for which it is substituted shall be cancelled.

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Transfers of
shares
although by
present
name to be
valid.

22. All transfers or other dispositions of shares in the capital of the limited company shall after the substitution therefor of ordinary stock and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of ordinary stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to the nominal amount of ordinary stock equal to that for which such shares shall have been substituted under the provisions of this Act.

Stock to be
transferable
in multiples
of one
pound.

23.—(1) All stock of the Company shall be issued and shall be transferable only in amounts of one pound or multiples of one pound but so that the holding of any stockholder shall not be reduced below an amount of five pounds of stock. Notice of the effect of this enactment shall be stated in all certificates of such stock.

(2) Sections 18 to 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to all stock created and issued under the provisions of this Act and to the dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

Power to
raise addi-
tional
capital.

24. The Company may from time to time raise additional capital not exceeding in the whole twenty-one thousand six hundred and seventy-five pounds by the creation and issue at their option of further ordinary stock or preference stock or partially by one or other of those modes. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twenty-one thousand six hundred and seventy-five pounds. Provided also that the Company shall not raise by the issue of preference stock a greater amount of such additional capital than ten thousand pounds.

New stock
to be sold
by auction
or tender.

25.—(1) All stock created under the powers of the section of this Act of which the marginal note is "Power to raise

additional capital" shall be issued in accordance with the provisions of this section. A.D. 1912.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

- (A) Notice of the intended sale shall be given in writing to the clerk of the Fleetwood Urban District Council and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only

A.D. 1912. Provided that in the case of an offer to holders of stock if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered in accordance with subsection (2) or with subsections (2) and (3) and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of stock.

Privileges
&c. of
holders of
additional
capital.

26. Except as is otherwise by this Act provided all additional capital created by the Company under this Act shall be part of the general capital of the Company and the new stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other powers rights and privileges in proportion to the amount of their stock and shall be subject to the like provisions and liabilities in all respects as if the stock in the additional capital were part of the stock issued under this Act in substitution for shares in the limited company.

BORROWING POWERS.

Power to
borrow in
respect of
ordinary
stock.

27. The Company may at any time after the date of transfer borrow at interest not exceeding the rate of four pounds per centum per annum on mortgage of the undertaking in respect of the ordinary stock which is by this Act substituted for the capital of the limited company (including premiums thereon) any sum or sums of money not exceeding in the whole (inclusive of the sum of three thousand seven hundred pounds already borrowed by the limited company) the sum of sixteen thousand five hundred pounds.

Power to
borrow in
respect of
additional
capital.

28. The Company may subject to the provisions of this Act borrow at interest not exceeding the rate of four pounds per centum per annum on mortgage of the undertaking in

respect of the additional capital by this Act authorised to be raised any sum or sums not exceeding in the whole one-third part of the amount of such additional capital which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof has been fully paid up. A.D. 1912}

29. All mortgages and debenture bonds granted by the limited company before and subsisting at the date of transfer shall during the continuance of such mortgages and debenture bonds and subject to the terms thereof have priority over any mortgages or debenture stock granted or created and issued by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Existing mortgages to have priority.

30. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on all debenture stock and on all mortgages at any time after the date of transfer created and issued or granted by the Company under this or any subsequent Act and affecting the undertaking shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

31. All money already raised by the Company on mortgage or by the issue of debenture stock under the provisions of this Act and all moneys continued on mortgage of the undertaking shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum Priority of mortgages and debenture stock over other debts &c.

A.D. 1912. reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

For appointment of a receiver.

32. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being owing by the Company on mortgage.

DIVIDENDS &c.

Limitation of profits.

33. Except as is by this Act provided the profits of the Company to be divided among the holders of ordinary stock of the Company in any half year shall not exceed the rate (in this Act referred to as "the standard rate of dividend") of five pounds per centum per annum and the profits of the Company to be divided among the holders of preference stock shall not exceed the rate of five pounds per centum per annum.

SPECIAL PURPOSES AND RESERVE FUNDS.

Power to create a special purposes fund.

34.—(1) The directors of the Company may if they think fit in any half year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum of the paid-up capital of the Company including premiums thereon to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or an incorporated accountant being an auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for the ordinary maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums thereon. A.D. 1912.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) For the purposes of this section the paid-up capital of the Company at the date of the passing of this Act shall be deemed to be the sum of thirty-eight thousand four hundred pounds.

35. If the clear profits of the undertaking of the Company in any half year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of the undertaking for the next following half year provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividends at the authorised rates. Application of excess of profits over authorised rates of dividend.

36. Where in any half year the dividend which may be paid by the Company on the ordinary stock shall exceed the standard rate by reason of the price charged by the Company for gas in such half year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such half year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the limited company existing at the date of transfer may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund Power to create a reserve fund.

A.D. 1912. so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any half year in which the clear profits of the Company shall be insufficient to enable the Company in such half year to pay the dividend at the authorised rate on the ordinary stock and save as in this Act provided no sum shall in any half year be carried by the Company to any reserve fund.

MEETINGS.

First
ordinary
meeting.

37. The first ordinary meeting of the Company shall be held within six months after the date of transfer and the subsequent ordinary meetings shall be held half-yearly in the months of February or March and August or September in each year at the Company's principal office or at such other place and at such other time as shall be appointed for that purpose by an order of the directors.

Quorum for
general
meetings.

38. The quorum for all general meetings of the Company shall be seven stockholders present in person or by proxy holding in the aggregate and entitled to vote in respect of not less than one-twentieth of the issued capital of the Company.

Scale of
voting.

39. As from the date of transfer every holder of ordinary stock shall be entitled to one vote and an additional vote in respect of every twenty-five pounds of such stock held by him beyond the first twenty-five pounds up to one hundred pounds and to an additional vote for every fifty pounds of such stock held by him beyond one hundred pounds.

Restriction
as to votes
in respect of
preference
stock.

40. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any stock to which a preferential dividend shall be assigned.

DIRECTORS AND AUDITORS.

Number of
directors.

41. The number of directors shall be four but the Company may vary the number provided that the number be not at any time more than six nor less than three.

Qualifica-
tion of
directors.

42.—(1) The qualification of a director shall be the possession in his own right of stock of the Company to the nominal amount of not less than three hundred and fifty pounds.

(2) If any director shall be made bankrupt or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be

occasioned by illness or any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director. A.D. 1912.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

43. The quorum of a meeting of directors shall be three.

Quorum of directors.

44. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

Notice of candidature for office of director.

45. William Charles Buckley Thomas Popple Edwin Riley and John Thomas Partington shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the date of transfer At that meeting the stockholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for election and at the ordinary meeting to be held in February or March in every year after the first ordinary meeting the stockholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

First and subsequent directors.

46.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors.

Auditors.

A.D. 1912.

(2) It shall not be necessary for any auditor to hold any stock in the Company.

SUPPLY OF GAS WORKS &C.

Limits of supply.

47. The limits within which the Company may supply gas under this Act (in this Act called "the limits of supply") shall be the parish or township and urban district of Fleetwood in the county of Lancaster.

Powers as to construction and maintenance of gas-works &c.

48. Subject to the provisions of this Act the Company may upon the land described in Part I. of the schedule to this Act maintain and continue the existing gasworks of the limited company and may upon such land and upon the land described in Part II. of the said schedule or any part thereof erect make maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasholders drains sewers mains pipes machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas for public or private purposes in bulk or otherwise for lighting heating motive power or other purposes within the limits of supply and for the conversion and manufacture of residual products in accordance with the provisions of this Act.

Power to purchase lands by agreement.

49. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands authorised to be so used by this or any other Act affecting the gas undertaking.

Power to sell and lease lands.

50. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell and dispose of or may let on lease for such periods as they may think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to

such reservations stipulations restrictions and provisions and A.D. 1912.
generally upon such terms and conditions as the Company may
think fit.

51. The Company may lay down place repair alter remove and renew mains pipes culverts and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay
pipes &c. for
purposes
ancillary to
business of
Company.

52. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if the street were land dedicated to public use.

Power to lay
pipes in
private
streets.

53. The Fleetwood Urban District Council shall in respect of any street or road not repairable by the inhabitants at large be deemed in addition to any other persons to be persons having the control or management thereof for the purposes of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

As to laying
of mains and
pipes in pri-
vate streets.

54. The following provisions for the protection of the Fleetwood Urban District Council (in this section referred to as "the council") shall have effect as regards all new works carried out by the Company under the powers of this Act and as far as applicable as regards the alteration improvement enlargement extension renewal or reconstruction of existing works unless otherwise agreed between the Company and the council (that is to say):—

For protec-
tion of Fleet-
wood Urban
District
Council.

- (1) All mains pipes and works to be laid in or along any road or in or upon or across any bridge shall be laid in such position in or at the side thereof as the council in writing under the hand of their surveyor may reasonably direct:

A.D. 1912.

- (2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any road or bridge be not less than seven clear days instead of three clear days:
- (3) The plan required by section 9 of the last-mentioned Act shall as regards any bridge be on a scale of not less than eight feet to an inch and in respect to any road or bridge approach on a scale of not less than $\frac{1}{2500}$ and in the case of a bridge such plan shall be accompanied by sections to suitable scales to show clearly the proposed works and shall be delivered to the council or their surveyor by the Company not less than in the case of a bridge fourteen days and in all other cases (except for the laying connecting or repairing of consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst in which case notice shall be immediately given thereof) seven days before the Company commence to open or break up any road or interfere with any bridge or other property of the council for the purpose of executing the works:
- (4) Nothing in this Act shall authorise the Company to interfere with the structural part of any bridge without the consent in writing of the surveyor to the council. Such consent shall not be unreasonably withheld and may be given upon such conditions as the council may reasonably determine:
- (5) All works shall be so executed by the Company as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any road or over any bridge or the approaches thereto and the Company shall not break up at any one time a greater length than one hundred yards of any road:
- (6) Where any mains pipes or other works of the Company being made of cast-iron are to be laid or constructed beneath the surface of any road or bridge the same shall if possible be laid or constructed at such a depth that not less than two feet six inches shall intervene between the surface of such road or bridge and the upper surface of such mains pipes or works

Provided that if the Company lay steel mains or pipes instead of cast-iron mains or pipes the depth to intervene between the surface of such road or bridge and the upper surface of such mains or pipes need not exceed two feet Any difference as to the possibility of so laying or constructing any such mains pipes or works shall be determined by arbitration as herein-after in this section provided: A.D. 1912.

- (7) If any difference arises at any time between the council and the Company touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by the arbitration of an engineer to be agreed upon between the council and the Company and failing agreement to be appointed by the President for the time being of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to the arbitration.

55. The standard price to be charged by the Company for gas supplied by them by ordinary meter shall be four shillings and two pence per one thousand cubic feet: Dividend dependent on price charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary stock as follows:—

In respect of any half year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by one shilling and three pence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds;

And in respect of any half year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by one shilling and

A.D. 1912.

three pence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds :

Provided also that if in any half year the dividends payable shall comprise a fractional amount less than one quarter per centum the directors of the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with such succeeding dividends accordingly or add the same to the reserve fund.

Charge for
gas supplied
by means of
prepayment
meters.

56.—(1) The Company may demand for any gas supplied through a prepayment meter any charge not exceeding the charge for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of ten pence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connexion with the meter and fittings.

(3) The Company shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of six pence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Company in connexion with the meter.

(4) For the purpose of this section the expression "pre-payment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor through or by means of such meter or appliance. A.D. 1912.

57. The prescribed number of candles shall be not less than fourteen. Quality of gas.

58. For the purposes of the Gasworks Clauses Act 1871 the testing place which has been provided by the limited company at their works shall be the prescribed testing place. Testing place.

59.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle Pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

60.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure of gas.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms

A.D. 1912. of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

61. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

As to construction and placing of pipes &c. between mains and meters.

62. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as the same are intended to be covered over:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy of such specification shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipes or meters have been laid or placed notice thereof shall be given to the Company and the pipes shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in

the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meters are not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with: A.D. 1912.

- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

63.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings for lighting motive heating and ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be and all fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

64. At least twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by the Company and in default of such notice the consumer so quitting shall be liable to pay to Consumers to give notice to Company before removing.

A.D. 1912. the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Power to refuse supply to persons in debt for other premises.

65. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to discontinue supply.

66. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Period of error in defective gas meters.

67. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Anti-fluctuators for gas engines.

68. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times and at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

69. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

A.D. 1912.

Power to enter premises and remove fittings.

70. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Company a supply of gas for any premises for which he has at the same time a supply of gas from any installation other than that of the Company unless he shall have agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Supply of gas where consumer has separate supply.

71. The Company may contract with any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply.

Company may contract with local authority &c. for supply in bulk.

72. For the protection of the Lancashire and Yorkshire Railway Company (in this section referred to as "the Lancashire Company") or the Lancashire Company and the London and North Western Railway Company jointly (in this section referred to as "the two companies") the following provisions shall unless otherwise agreed between the Company and the Lancashire Company or the two companies as the case may be observed and have effect (that is to say):—

For protection of Lancashire and Yorkshire and London and North Western Railway Companies.

- (1) Whenever under the powers of this Act the Company shall require to lay down place repair alter remove or renew any mains pipes culverts or apparatus in

A.D. 1912.

connexion with their undertaking upon across or under any railway for the time being belonging to the Lancashire Company or the two companies or the stations bridges approaches or other works thereof or to construct any works adjoining thereto not being works constructed on the lands described in the schedule to this Act they shall (except in cases of emergency) give to the engineer of the Lancashire Company or the two companies as the case may be fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans :

- (2) Such works (including the making good and repairing of any roads over any such railway and over any bridges and approaches which the Lancashire Company or the two companies as the case may be are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company) shall be laid constructed and executed at the expense of the Company under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the Lancashire Company or the two companies as the case may be and (except in cases of emergency) according to plans to be previously reasonably approved by him and so as to avoid as far as possible injury to any such railway or any of the works thereof and so as not to cause any interruption to the passage or conduct of the traffic over or at any such railway or station Provided that if the said engineer shall not express his disapproval of such plans within fourteen days from the submission thereof he shall be deemed to have approved thereof :
- (3) When the Company open or break up any road or pavement of any street or other works belonging to or repairable by the Lancashire Company or the two companies as the case may be they shall with all convenient speed complete the work for which the same shall be broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after reinstatement

and making good and for such further time if any not exceeding twelve months in the whole as the soil so broken up shall continue to subside : A.D. 1912.

- (4) If the Company make any unnecessary delay in completing such work or reinstating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the Lancashire Company or the two companies as the case may be may cause the work so delayed to be executed or effect such repair and the reasonable expense of executing the same shall be repaid to them by the Company :
- (5) The Company shall repay to the Lancashire Company or the two companies as the case may be the reasonable expense of any temporary works or watching which may be necessary to provide for the protection of any such railway or the traffic thereon or thereto during the carrying out of the works aforesaid :
- (6) If in the execution or maintenance of the works any injury shall arise to any such railway or station or any works connected therewith or any interruption of traffic be caused the Company shall make full satisfaction in respect thereof to the Lancashire Company or the two companies as the case may be and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner herein-after provided :
- (7) Any difference which may arise between the Company and the Lancashire Company or the two companies as the case may be under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

MISCELLANEOUS.

73. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this

Application
of moneys.

A.D. 1912. Act shall not be considered as part of the capital of the Company entitled to dividend.

Receipt in case of persons not sui juris.

74. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to make superannuation and other allowances.

75. It shall be lawful for the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Company.

Profit sharing.

76.—(1) The directors of the Company may with the sanction of a majority of the shareholders present and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify or alter a scheme enabling the workmen servants and employees of the Company (herein-after called "employees") or any class or classes of such employees as may be defined in any such scheme to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen and shall be in writing and may be made on the part of the Company under the hands of any two directors of the Company or under the hand of the secretary of the Company or of any person from time to time appointed in that behalf by resolution of the board of directors of the Company.

Company to pay interest on money deposited as security for gas meter &c.

77. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands as security.

Power to take licences for use of patents.

78. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending

any invention in relation to the production manufacture utilisation or distribution of gas or materials employed in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention. A.D. 1912.

79. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect fit up maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company. Dwelling-houses for workmen.

80. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company. Power for directors to determine remuneration of secretary.

81. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

82. Any notice to be served by the Company demanding payment of any charge in respect of a supply of gas or of fittings shall be sufficiently authenticated by the name of the secretary or of a collector or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in print or by a stamp. Authentication of notices.

83. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

84. As from the date of transfer and subject to the provisions of this Act the Order of 1873 and so much of the Gas and Water Orders Confirmation Act 1873 (No. 2) as relates thereto Repeal of Order of 1873 and Order of 1884.

A.D. 1912. — and the Order of 1884 and so much of the Gas Orders Confirmation (No. 1) Act 1884 as relates thereto are hereby repealed.

Copy of
Act to be
registered.

85. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum or the abstract required to be filed with the Registrar by a receiver or manager or the statement required to be sent to the Registrar by the liquidator in a winding up in England.

Costs of Act.

86. All the costs charges and expenses of and incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULE referred to in the foregoing Act. A.D. 1912.

LANDS FOR GASWORKS.

PART I.

A piece or parcel of land situate in the parish and township of Fleetwood in the county of Lancaster containing by admeasurement 5,200 square yards or thereabouts now in the occupation of the limited company which piece or parcel of land is bounded on or towards the north by Cop Lane on or towards the south by a street leading from Mount Street (formerly called Lower Dock Street) to Styan Street on or towards the east in part by a dwelling-house and premises formerly belonging to and occupied by Joseph Harrison but now belonging to Deborah Elizabeth Rowe and in the occupation of John Burns and in other part by the Fleetwood public slaughter-house and on or towards the west in part by a back street leading from Cop Lane to Styan Street and in other part by Styan Street.

PART II.

A piece or parcel of land situate in the parish and township of Fleetwood in the county of Lancaster containing by admeasurement 2,078 square yards or thereabouts now in the occupation of the limited company which piece or parcel of land is bounded on or towards the north-east by Styan Street on or towards the north-west by a street leading from Station Road to Styan Street on or towards the south-west by Station Road and on or towards the south-east by other land and premises belonging or reputed to belong to the Fleetwood Estate Limited and in the occupation of Alec Black.

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